

23VECV02061 23VECV02061

County: los-angeles

Division: Civil Law and Motion

Department: 107

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Case Number: 23VECV02061 Hearing Date: September 16, 2026 Dept: 107

SUPERIOR COURT

OF THE STATE OF CALIFORNIA

COUNTY OF LOS

ANGELES

NORTHWEST

DISTRICT

Ofelia Fernandez, et

al.,

Plaintiffs.

v.

Ford Motor Company

Defendant.

Case Number Department

23VECV02061 107

COURT'S [TENTATIVE]

DECISION RE:

PLAINTIFFS'

C.C.P. § 473(b) MOTION

[THE FOLLOWING IS A TENTATIVE
DECISION:]

Plaintiffs' Motion to Set Aside
Dismissal is DENIED.

I.
BACKGROUND

On
April 8, 2019, Plaintiffs Ofelia Fernandez and Carlos Fernandez ("Plaintiffs")
purchased a 2018 Ford F-150 (the "Vehicle"). (Complaint ¶ 8.) The Vehicle was
defective. (Complaint ¶ 10.)

On May 10, 2023, Plaintiffs filed a
complaint against Defendants Ford Motor Company ("Defendant") and Does 1
through 10, alleging causes of action for: (1) violation of Song- Beverly Act -
breach of express warranty; (2) violation of Song-Beverly Act - breach of
implied warranty; and (3) violation of the Song-Beverly Act section 1793.2.

On May 23, 2024, Plaintiffs filed a
notice of settlement of entire case.

On July 21, 2025, the court
dismissed the case without prejudice and retained jurisdiction under Code of
Civil Procedure section 664.6. (07/21/25 Minute Order.)

On August 12, 2026, Plaintiffs filed this motion
to set aside the dismissal.

On August 19, 2026, Plaintiffs' motion for
attorney fees (filed on June 9, 2026) was denied as untimely.

On August 18, 2026, Defendant filed an opposition
to the motion to set aside the dismissal.

On September 9, 2026, Plaintiffs filed a reply.

II.

LEGAL

STANDARD

Code

of Civil Procedure (CCP), section 473, subdivision (b) provides for two distinct types of relief—commonly differentiated as “discretionary” and “mandatory”—from certain prior actions or proceedings in the trial court. (Luri v. Greenwald (2003) 107 Cal.App.4th 1119, 1124 (Luri).)

The

discretionary portion of section 473, subdivision (b) provides: “The court may, upon terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (Code Civ. Proc., § 473, subd. (b).)

Under the discretionary standard specific facts must be demonstrating “mistake, inadvertence, surprise or excusable neglect[.]” (CCP § 473(b) [italics added]), and “must show a satisfactory excuse for his default, and he must show diligence in making the motion after discovery of the default.” (Hopkins & Carley v. Gens (2011) 200 Cal.App.4th 1401, 1410.)

The

mandatory portion of section 473 requires the court to, “whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney’s sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney’s mistake, inadvertence, surprise, or neglect.” (Code Civ. Proc., § 473, subd. (b).)

III.

DISCUSSION

Plaintiffs move under CCP section 473(b) to set aside the July 21, 2025 dismissal to the extent it forecloses Plaintiffs' motion for attorneys' fees.

This motion is untimely. This case was dismissed on July 21, 2025. This motion was filed August 12, 2026, more than a year after the dismissal. (See Code Civ. Proc., § 473, subdivision (b).) The Court does not have authority under CCP section 473(b) to excuse Plaintiff's noncompliance with the six-month time limit. (See *Arambula v. Union Carbide Corp.* (2005) 128 Cal.App.4th 333, 345.) Thus, the motion under CCP section 473(b) cannot be considered.

In reply, Plaintiffs attempt to recharacterize the order they are seeking to set aside. Now, they seek to set aside the Court's minute order denying the motion for attorney fees. But that order was made on August 19, 2026, a week before the instant motion was filed. Thus, Plaintiffs could not have sought to set aside that order when this motion was filed. Further, CCP section 473(b) is not a vehicle to relitigate a ruling. (*Craddock v. Hilton Domestic Operating Co.* (2025) 112 Cal. App. 5th 284.)

CRC Rule 3.1702(d)-
Good Cause

Plaintiffs also argue that the Court should extend the time to file the fee motion for good cause under CRC Rule 3.1702(d).

"For good cause, the trial judge may extend the time for filing a motion for attorney's fees in the absence of a stipulation or for a longer period than allowed by stipulation." (CRC Rule 3.1702(d).)

"A court may grant a request for extension of time to file a motion for attorney's fees even if the motion is not filed until after the deadline for filing an attorney's fees motion under Rule 3.1702." (*Robinson v. U-Haul Co. of California* (2016) 4 Cal.App.5th 304, 326.) Good cause is "equated to a good reason for a party's failure to perform that specific requirement [of the

statute] from which he seeks to be excused.” (Id. at 327.) The “good cause” standard of Rule 3.1702(d) gives trial courts “considerably more latitude in ruling on an extension of time to file an attorney’s fees motion” than granting relief from a judgment, dismissal, or order under CCP section 473(b). (Ibid.)

Plaintiffs argue that the law was unsettled as to when the time to move for attorneys’ fees is triggered in a CCP sections 998 and section 664.6 settlement that defers dismissal and retains jurisdiction pending performance. Plaintiffs argue that no published decision had resolved that precise question until *Hatlevig v. General Motors LLC* (2026) 118 Cal.App.5th 644 was certified for publication on February 17, 2026.

However, the motion for attorney fees has already been denied. Thus, the request to extend the time to file the motion is now moot.

Further, the court already denied Plaintiffs’ request to extend the deadline to file the motion for good cause in the ruling for the motion for attorney fees. Plaintiffs have not sought reconsideration of that order and merely move for the same relief again, which is improper. They were required to bring a timely motion for reconsideration and show new or different facts or circumstances or law, and a valid reason for why they were not offered earlier. A court acts in excess of jurisdiction when it grants a motion to reconsider that is not based upon “new or different facts, circumstances or law.” (*Gilbert v. AC Transit* (1995) 32 Cal.App.4th 1494, 1499.) Motions for reconsideration are restricted to circumstances where a party offers the Court some fact or circumstance not previously considered, and some valid reason for not offering it earlier. (Id.) Plaintiffs do not show any new or different facts, or circumstances or law, or any valid reason for not offering it earlier.¿¿¿¿

In any event, Plaintiffs’ argument for good cause rests on the incorrect premise that the law was unsettled at the time. CRC Rule 3.1702 existed when the Court dismissed this case. As the Court of Appeal stated in *Hatlevig*, *supra*, 118 Cal. App. 5th at 649, “Rule 3.1702 of the California Rules of Court governs motions for attorney fees in civil cases.” (Id., rule 3.1702(a); *Carpenter v. Jack in the Box Corp.* (2007) 151 Cal.App.4th 454.) *Hatlevig* simply affirmed existing case law applying the Rule. (*Hatlevig*, *supra*, 118 Cal.App.5th at

649 [citing *Sanabria v. Embry* (2001) 92 Cal.App.4th 422; *Catlin Ins. Co., Inc. v. Danko Meredith Law Firm, Inc.* (2022) 73 Cal.App.5th 764.) The issue in *Hatlevig* was whether the date specified in the notice or the date of the minute order qualified as the dismissal date, not whether the time for a fee motion starts running from the date of dismissal. (See *Hatlevig*, supra, 118 Cal.App.5th at 649 [“The main issue in dispute in this appeal is what event started the clock running.”].) Thus, there is no good cause shown.

Plaintiffs argue that neither *Sanabria* or *Catlin* involved a dismissal without prejudice with retained jurisdiction and an agreement that fees would be set by later motion. However, *Hatlevig* also did not involve those circumstances. Regardless, “Rule 3.1702 of the California Rules of Court governs motions for attorney fees in civil cases.” (*Hatlevig*, supra, 118 Cal. App. 5th at 649; *Id.*, rule 3.1702(a); *Carpenter v. Jack in the Box Corp.* (2007) 151 Cal.App.4th 454, 462.) Thus, Rule 3.1702 applied in this circumstance as well, even absent *Hatlevig*.

IV.

CONCLUSION

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Plaintiffs' Motion is DENIED in full.

Dated: September 16, 2026 _____ Hon. Eric Harmon

Judge of the Superior Court